

26NWCV00543 26NWCV00543

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Case Number: 26NWCV00543 Hearing Date: July 16, 2026 Dept: P

HYOJUNG LEE v. WONNIE WON-SUK KIM, ET AL.

CASE NO.: 26NWCV00543

HEARING: 07/16/2026 @ 9:30 AM

#13

TENTATIVE ORDER

I.

Plaintiff Hyojung Lee's application for a right to attach order and writ of attachment against Defendant Won Suk Kim Real Estate Inc. is DENIED without prejudice.

II.

Plaintiff Hyojung Lee's application for a right to attach order and writ of attachment against Defendant Bella Assets, LLC is DENIED without prejudice.

Moving party to give notice.

Plaintiff Hyojung Lee aka Hyo Jung Lee (Plaintiff) seeks right to attach orders and writs of attachment against (1) Defendant Bella Assets, LLC and (2) Defendant Won Suk Kim Real Estate Inc.

Background

On February 13, 2026, Plaintiff filed this breach of contract against Defendants Wonnie Won-Suk Kim (Kim); Won Suk Kim Real Estate Inc. (WSKRE); Erica Eun Ah Kim (Erica); Bella Assets, LLC (Bella); Kim Real Estate of Wonnie Kim (KRE); and Does 1 through 20. The complaint alleges the following: Kim and Erica are the CEO, Secretary, and CFO of WSKRE; CEO of Bella; and operating KRE. (Complaint, ¶ 7.) On August 21, 2021, Plaintiff contacted Kim to participate in an investment project after Plaintiff had been following Kim through his Youtube videos and real estate columns regarding flipping real estate properties. (Complaint, ¶¶ 17-20.) On September 1, 2021, Plaintiff was invited to participate in a showing of a multi-family residential property located at 2740 S. Sycamore Avenue, Los Angeles, California 90016-2718 (Sycamore Property). (Complaint, ¶ 20.) Plaintiff and KRE entered into a joint venture agreement (Sycamore Agreement) to rehab and sell the Sycamore Property. (Complaint, ¶ 21.) After the Sycamore Property did not sell for three years, Plaintiff alleges Defendants breached the Sycamore Agreement by operating the Sycamore Property as an Airbnb rather than rehabbing and selling it. (Complaint, ¶¶ 35-41.)

Similarly, the complaint alleges Plaintiff and Bella entered into a joint venture agreement (First Street Agreement) to rehab and sell the property located at 1526 East 1st Street, Los Angeles, CA 90033 (First Street Property). (Complaint, ¶¶ 43-45.) Plaintiff alleges Defendants breached the First Street Agreement by operating the failing to sell the First Street Property and refusing to provide accurate and complete accounts. (Complaint, ¶¶ 50-51.)

The complaint asserts ten causes of action: (1) fraud; (2) civil conspiracy fraud; (3) breach of fiduciary duty; (4) civil conspiracy conversion, (5) breach of Sycamore Agreement; (6) breach of First Street Agreement; (7) breach of implied duty to perform with reasonable care; (8) common counts; (9) accounting (Sycamore Property); and (10) accounting (First Street Property).

On March 9, 2026, Plaintiff filed the instant Notices of Application and Hearings for Writs of Attachment and Applications for Right to Attach Orders.

On April 1, 2026, Plaintiff filed Requests for Default and Default was entered as to Kim, Kim RE, WSKRE, and Bella. On April 9, 2026, Plaintiff filed a Request for Default and Default was entered as to Erica.

Legal Standard

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (Code Civ. Proc., § 484.010.) The application shall be executed under oath and must include:

(a) statement

showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued;

(b) a

statement of the amount to be secured by the attachment;

(c) a

statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based;

(d) a

statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and

(e) a

description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment.

(Code Civ. Proc., §§ 484.020.)

The Court shall consider the showing made by the parties, as well as the pleadings and other papers in the record. (Code Civ. Proc., § 484.090, subd. (a), (d).) The Court shall issue a right to attach order if it finds all of the following:

(1) The

claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.

(Code Civ. Proc., § 484.090, subd. (a)(1)-(4).)

At the times prescribed by Code of Civil Procedure section 1005, subd. (b), the defendant must be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and supporting affidavits. (Code Civ. Proc., § 484.040.) “The Attachment Law statutes are subject to strict construction.” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc., § 481.190.) “In contested applications, ‘[t]he court must consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.’” (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 80 [ellipses and quotation marks omitted].)

Discussion

Plaintiff seeks right to attach orders and writs of attachment against Bella and WSKRE. These writs of attachments are unopposed.

Probability

Validity of Claim – Won Suk Kim Real Estate Inc.

Plaintiff seeks a right to attach order and writ of attachment based only on the fifth cause of action for breach of Sycamore Agreement. Plaintiff moves pursuant to her written agreement with KRE and argues KRE has no defense to the breach of contract claim.

The elements of a breach of contract claim are “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiffs.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Here, Plaintiff’s Notice of Application and Hearing for Right to Attach Order and Application for Writ of Attachment papers are directed toward WSKRE, not KRE. (See Notice, Right to Attach Order, ¶ 1; Application for Right to Attach Order, ¶ 2.) However, Plaintiff’s arguments and evidence are directed toward KRE. Plaintiff submits a declaration stating “[t]he only members to the Sycamore Avenue Property agreement are ‘Kim Real Estate of Wonnie Kim’ and me (Hyo Jung Lee), yet the Sycamore Avenue Property is in the name of non-member, Bella Assets, LLC.” (Lee Decl., ¶ 8.) As such, Plaintiff does not show the WSKRE is a party to this agreement. Moreover, the fifth cause of action is not alleged against WSKRE.

As Plaintiff’s applications and notice papers are directed toward WSKRE, the Court rules on this application as to WSKRE. (See Epstein, supra, 57 Cal.App.4th at p. 1168 [attachment statutes are subject to strict construction].) Since Plaintiff does not assert the fifth cause of action against WSKRE, the Court cannot find a probable validity that Plaintiff will prevail on the claim against WSKRE.

Accordingly, Plaintiff’s application for a right to attach order and writ of attachment against WSKRE is DENIED without prejudice. The Court does not rule on this application as to KRE since there is no evidence that the statutory requirements and notice were followed as to KRE.

Probability Validity of Claim –
Bella Assets, LLC

Plaintiff seeks a right to attach order and writ of attachment against Bella as to the fifth cause of action for breach of the Sycamore Agreement. Plaintiff argues that Bella has no credible defense as to its acceptance of the fraudulent conveyance.

Plaintiff moves pursuant to the Sycamore Agreement, an agreement entered into between Plaintiff and KRE by which Plaintiff paid Bella

on behalf of KRE for a joint venture real estate investment into the Sycamore Property. (Lee Decl., ¶¶ 5-6.) Plaintiff attests that “[t]he only members to the Sycamore Avenue Property agreement are ‘Kim Real Estate of Wonnie Kim’ and me (Hyo Jung Lee), yet the Sycamore Avenue Property is in the name of non-member, Bella Assets, LLC.” (Lee Decl., ¶ 8.) Plaintiff states that “[n]either Bella nor KRE can deny that they received the funds from me and KRE cannot deny that it breached its agreement with me by placing title to the Sycamore Avenue Property in the name of Bella.” (Lee Decl., ¶ 6.)

Since Plaintiff “seeks a writ of attachment only as to the breach of written contract cause of action alleged in the Complaint as to the Sycamore Avenue property (Fifth Cause of Action),” Plaintiff does not assert a basis for a right to attach order or writ of attachment against Bella. (Mot., 6:4-5.) The fifth cause of action is not alleged against Bella and by Plaintiff’s own assertions, Bella is not a party to the Sycamore Agreement. Moreover, by Plaintiff’s own assertions, “KRE breached the agreement...by not placing title in the name of KRE or me and, instead, placing title in the name of Bella.” (Lee Decl., ¶ 14.) Therefore, Plaintiff does not show that Bella was a party to the Sycamore Agreement or that Bella breached the Sycamore Agreement.

Accordingly, Plaintiff’s application for a writ of attachment and right to attach order against Bella is DENIED without prejudice.